

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 10

Honorable Jeffrey B. El-Hajj

Blanca Than, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2210

DATE: May 26, 2026 TIME: 9:00 A.M. / 9:01 A.M.

To contest the ruling, call (408) 808-6856 before 4:00 P.M.

Make sure to let the other side know before 4:00 P.M. that you plan to contest the ruling.
(Cal. Rules of Court, rule 3.1308(a)(1); Local Rule 8.D.)

****Please specify the issue to be contested when calling the Court and counsel****

The courthouse is open: Department 10 is fully open for in-person hearings. The court **strongly prefers in-person** appearances for all contested law-and-motion matters. For all other hearings, parties may appear either in person or by video. Telephone-only appearances are no longer permitted for civil hearings unless the court grants an exception. (Civil Local Rule 5.A.)

Scheduling motion hearings: Please visit <https://reservations.sccscourt.org> or call 408-882-2430 between 8:30 a.m. and 3:00 p.m. (Mon.-Fri.) to reserve a hearing date for your motion *before* you file and serve it. Motion papers must be filed no more than five court days after reserving the hearing date, or the date will be released to other cases.

Remote appearances: Department 10 uses Unicorn Digital Courtroom (UDC) for remote hearings. **This system requires advance registration with a case number and hearing date.** Please visit this link if you need to appear remotely, and then scroll to the link for Department 10:
<https://santaclara.courts.ca.gov/online-services/remote-hearings>.

Recording is prohibited: Most hearings are open to the public, but state and local court rules prohibit recording of court proceedings without a court order. This prohibition applies to both in-person and remote appearances.

Court reporters: Unfortunately, the court is not able to provide official court reporters for civil proceedings. If any party wishes to have a court reporter, the appropriate form must be submitted. See <https://santaclara.courts.ca.gov/general-information/court-reporter-information>.

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9:00 A.M.

LINE #	CASE #	CASE TITLE	RULING
Line 1	24CV453098	Deirdre Ghiossi v. General Motors, LLC	Defendant General Motors, LLC's (1) demurrer to the first amended complaint's fifth cause of action, and (2) motion to strike that pleading's prayer for punitive damages. Notice is proper. Plaintiff filed a notice of non-opposition to the demurrer. Plaintiff did not oppose the motion to strike. Failure to oppose a motion may be deemed a consent to the granting of the motion. (Cal. Rules of Court, rule 8.54(c).) Failure to oppose a motion leads to the presumption that the non-moving party has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489.) Defendant's demurrer to the first amended complaint's fifth cause of action is SUSTAINED WITHOUT LEAVE TO AMEND. Defendant's motion to strike the first amended complaint's prayer for punitive damages is GRANTED WITHOUT LEAVE TO AMEND. The court will prepare the order.
Line 2	24CV453098	Deirdre Ghiossi v. General Motors, LLC	See Line 1.

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Line 3	25CV459133	Bianca Andrade v. Aravind Rangaraj et al.	Defendant Aravind Rangaraj's motion to quash service of summons. (Code Civ. Proc., § 418.10.) Notice is proper and the motion is unopposed. The motion is supported by declarations by Rangaraj and his office manager indicating that an individual delivered an incomplete summons, a civil case cover sheet, and the first page of the complaint in August 2025. No proof of service of summons has been filed in this action. (Cal. Rules of Court, rule 3.110(b) [proof of service of summons "must be filed with the court within 60 days after the filing of the complaint"].) The motion is GRANTED. An order to show cause re plaintiff's failure to serve Rangaraj will take place on July 2, 2026 at 10:00 a.m. in Department 10. The court will prepare the order.
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Line 4	23CV425926	Tony Sladek et al. v. Stanford Health Care et al.	Defendants' motion to compel the production of documents at plaintiff Tony Sladek's deposition. (Code Civ. Proc., § 2025.480.) Notice is proper and the motion is unopposed. Failure to oppose a motion may be deemed a consent to the granting of the motion. (Cal. Rules of Court, rule 8.54(c).) Failure to oppose a motion leads to the presumption that the non-moving party has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489.) The motion relates to requests for the production of documents at the third session of plaintiff's deposition. Defendants' motion indicates plaintiff neither objected nor produced documents responsive to request Nos. 1, 2, 7, 8, 10, 12, 13, 15, 16, and 17. The documents relate to plaintiff's finances. Defendants argue the documents are discoverable because plaintiff alleges the injury he allegedly sustained while in defendants' care led to loss of income and business opportunity related to a rental property business. On good cause shown, the motion is GRANTED. Plaintiff is ordered to produce documents responsive to those requests without objections, no later than July 1, 2026. Defendants' request for sanctions is GRANTED IN PART. Mandatory sanctions are imposed against plaintiff in the amount of \$1,639.95 (consisting of the \$39.95 filing fee and \$1,600 in attorney fees (four hours at \$400/hour).
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Line 5	25CV475988	Emory Street Partners, LLC v. Dana Hendricks et al.	Plaintiff Emory Street Partners, LLC's motion to compel depositions and the production of documents for four individuals or entities: defendant Dana Hendricks; the person most knowledgeable of defendant Vermont Street Partners, LLC; Margaret Hendricks; and the person most knowledgeable of Grand Lake Partners, LLC. (Code Civ. Proc., § 2025.450.) Notice is proper and the motion is unopposed. Failure to oppose a motion may be deemed a consent to the granting of the motion. (Cal. Rules of Court, rule 8.54(c).) Failure to oppose a motion leads to the presumption that the non-moving party has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489.) The depositions of Margaret Hendricks; and the person most knowledgeable of Grand Lake Partners, LLC, were noticed when they were not parties to the case. Margaret Hendricks and Grand Lake Partners, LLC were added as defendants by order in February 2026. Margaret Hendricks and Grand Lake Partners, LLC have motions to quash service of summons set for hearing in October 2026. But those motions to quash do not insulate them from attending a deposition because depositions are not limited to parties to an action. (Code Civ. Proc., § 2025.010.) Plaintiff's motion and supporting evidence indicate that the four depositions were properly noticed; that no objection or motion for protective order was raised or filed before the deposition dates; and that no individual appeared for any deposition. On good cause shown, the motion is GRANTED. The following individuals and entities are compelled to appear for depositions no later than July 17, 2026: defendant Dana Hendricks; the person most knowledgeable of defendant Vermont Street Partners, LLC; Margaret Hendricks; and the person most knowledgeable of Grand Lake Partners, LLC. Those individuals and entities must produce the documents identified in the notices of deposition previously served by plaintiff without objections. Plaintiff's request for sanctions is GRANTED IN PART. Mandatory sanctions are imposed
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			jointly and severally against Dana Hendricks and Vermont Street Partners, LLC, in the amount of \$7,996.25 (consisting of \$4,296.25 in court reporter costs; \$2,700 in attorney fees (nine hours at \$300/hour); and \$1,000 in paralegal fees (10 hours at \$100/hour)). The court will prepare the order.
Line 6	16CV291493	Dung Dao et al. v. Mai Vu et al.	Motion by plaintiffs Dung Hanh Dao and Hoan Minh Nguyen to enforce and clarify judgment. The court signed a stipulation and order on May 22, 2026, granting the relief requested in the motion. The motion is DENIED AS MOOT and the matter is taken OFF CALENDAR.

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9:01 A.M.

LINE #	CASE #	CASE TITLE	RULING
Line 1	23CV413023	UHG I LLC v. Jewel Wright	Claim of exemption by judgment debtor Jewel Wright related to wage garnishment. Notice is proper, and the judgment debtor has the burden of proof. The claim is GRANTED. Wright's income declaration indicates income below the legal minimum amount for an earnings withholding order. (Code Civ. Proc., § 706.050.) The court will prepare the order.
Line 2	24CV434918	LVNV Funding LLC v. Dongsuk Yoo	Claim of exemption by judgment debtor Dongsuk Yoo related to wage garnishment. Notice is proper, and the judgment debtor has the burden of proof. The claim is GRANTED. Yoo's income declaration indicates income below the legal minimum amount for an earnings withholding order. (Code Civ. Proc., § 706.050.) The court will prepare the order.

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